

25STCV04440 25STCV04440

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Case Number: 25STCV04440 Hearing Date: July 7, 2026 Dept: 731

Plaintiff Empire Fire and Marine Insurance Company

("Plaintiff") moves for judgment on the pleadings against Defendants Aibek

Alymkulov ("Alymkulov"), Sona Darbinyan ("Darbinyan"), Artashes Lalayan

("Lalayan"), and Gurgen Mkrtchyan ("Mkrtchyan") (collectively, "Defendants") as

to the First Amended Complaint filed by Plaintiff.

The Court DENIES the motion.

Background

This is an action for declaratory relief.

Plaintiff filed this action on February 14, 2025, alleging

causes of action for (1) declaratory relief and (2) unjust enrichment.

Plaintiff seeks monetary damages, a declaration, punitive damages, costs of suit, and for other relief as the Court deems appropriate.

On February 25, 2025, Plaintiff filed the operative first amended complaint (the "FAC").

Plaintiff alleges that Defendants conspired together to

stage an automobile accident to submit a fraudulent insurance claim. (FAC, ¶

5.) Plaintiff alleges Alymkulov rented a car from Enterprise-Rent-A-Car Company

and purchased Supplemental Liability Protection through Plaintiff. (FAC, ¶ 5;

Exh. 1.) Plaintiff alleges Alymkulov intentionally rear ended an Uber vehicle

where Darbinyan, Lalayan, and Mkrtchyan were passengers. (FAC, ¶ 6.)

On April 8, 2025, Darbinyan, Mkrtchyan, and Lalayan filed a special

motion to strike, anti-SLAPP motion, to the complaint pursuant to Code of Civil Procedure section 425.16.

On May 28, 2025, Alymkulov filed an answer.

On June 4, 2025, the Court granted the anti-SLAPP motion as to Plaintiff's second cause of action for unjust enrichment.

On June 9, 2025, Darbinyan, Mkrtchyan, and Lalayan filed their answer.

On August 29, 2025, Plaintiff filed a motion to deem its requests for admissions admitted against Alymkulov, which the Court granted on October 28, 2025.

On March 12, 2026, Plaintiff filed the instant motion for judgment on the pleadings against Alymkulov.

On May 19, 2026, Darbinyan, Mkrtchyan, and Lalayan filed their opposition to the instant motion.

As of July 1, 2026, Plaintiff has not filed a reply.

Legal Standard

Either prior to trial, but after the time to answer or demur has passed, or at the trial, the plaintiff or the defendant may move for judgment on the pleadings and that the appropriate ground for such a motion is the same as that arguable by general demurrer, namely, the failure to state a cause of action or defense. (*Dobbins v. Hardister* (1966) 242 Cal.App.2d 787, 791; see also *Sofias v. Bank of America* (1985) 172 Cal.App.3d 583, 586 [The non-statutory motion for judgment on the pleadings can be made at any time, even during trial, since the grounds for a general demurrer are never waived.], see also Code Civ. Proc., § 438, subd. (f).)

A motion for judgment on the pleadings performs the same function as a general demurrer and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed. (See, e.g., Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (TRG 1998) §§ 7:275, 7:322; *Lance Camper Manufacturing Corp. v. Republic Indemnity Co.*

(1996) 44 Cal.App.4th 194, 198.) Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings. (Id.; Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999.) Both a demurrer and a motion for judgment on the pleadings accept as true all material factual allegations of the challenged pleading, unless contrary to law or to facts of which a court may take judicial notice. (Mechanical Contractors Assn. v. Greater Bay Area Assn. (1998) 66 Cal.App.4th 672, 677; Edwards v. Centex Real Estate Corp, (1997) 53 Cal.App.4th 15, 27.)

The motion may be made only after one of the following conditions has occurred: (1) If the moving party is a plaintiff, and the defendant has already filed his or her answer to the complaint and the time for the plaintiff to demur to the answer has expired; (2) If the moving party is a defendant, and the defendant has already filed his or her answer to the complaint and the time for the defendant to demur to the complaint has expired. (Code Civ. Proc., § 438, subd. (f).) The motion provided for in Code of Civil Procedure section 438 may be made even though either of the following conditions exist: (1) The moving party has already demurred to the complaint or answer, as the case may be, on the same grounds as is the basis for the motion provided for in this section and the demurrer has been overruled, provided that there has been a material change in applicable case law or statute since the ruling on the demurrer; (2) The moving party did not demur to the complaint or answer, as the case may be, on the same grounds as is the basis for the motion provided for in this section. (Code Civ. Proc., § 438, subd. (g).) No motion may be made pursuant to Code of Civil Procedure section 438 if a pretrial conference order has been entered pursuant to Code of Civil Procedure section 575, or within 30 days of the date the action is initially set for trial, whichever is later, unless the court otherwise permits. (Code Civ. Proc., § 438, subd. (e).)

Discussion

Plaintiff moves for judgment on the pleadings in its favor against Alymkulov on its cause of action for declaratory relief.

A.

Meet and Confer Efforts

“Before filing a motion for judgment on the pleadings pursuant to this chapter, the moving party shall meet and confer in person, by

telephone, or by video conference with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings.” (Code Civ. Proc., § 439, subd. (a).) “The parties shall meet and confer at least 5 days before the date a motion for judgment on the pleadings is filed.” (Code Civ. Proc., § 439, subd. (a)(2).) However, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion for judgment on the pleadings.” (Code Civ. Proc., § 439, subd. (a)(4).)

Here, Plaintiff acknowledges its disregard to meet and confer before bringing the instant motion, claiming it would be “futile” and a waste of its time. (Mot., 5:21-28; 6:1-11.) The Court admonishes Plaintiff and its counsel for its flagrant refusal to attempt to meet and confer on the issues underlying the instant motion. While Plaintiff’s glaring rejection to meet and confer is not dispositive of the instant motion, the Court strongly suggests and encourages Plaintiff to meet and confer before bringing future motions.

B.

Motion for Judgment on the Pleadings

Plaintiff

argues Alymkulov’s conclusively established admissions entitle it to judgment on the pleadings because the admissions establish that the underlying motor vehicle collision was not an “accident.” (Mot., 4:25-28; 1-5.)

In a motion for judgment on the pleadings, “[t]he grounds for motion ... shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. Where the motion is based on a matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, the matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the court may otherwise permit.” (Code Civ. Proc., § 438, subd. (d).)

Plaintiff’s moving papers lack any requests for judicial notice. “A party requesting judicial notice of material under Evidence Code sections 452 or 453 must provide the court and each party with a copy of the material. If the material is part of a file in the court in which the matter is being heard, the party must: (1) Specify in writing the part of the court file

sought to be judicially noticed; and (2) Either make arrangements with the clerk to have the file in the courtroom at the time of the hearing or confirm with the clerk that the file is electronically accessible to the court.” (Cal. Rules of Court, rule 3.1306(c).) Thus, Plaintiff’s requests for admission and any other documents are considered extrinsic evidence at this point. Extrinsic evidence shall not be considered on a motion for judgment on the pleadings. (Cloud, *supra*, 67 Cal.App.4th 995 at p. 999.)

Because a motion for judgment on the pleadings attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed and Plaintiff does not provide any requests for judicial notice, the Court analyzes the FAC only. (Lance Camper Manufacturing Corp., *supra*, 44 Cal.App.4th 194 at p. 198.) A plain reading of the FAC does not establish that the accident was staged. In fact, the FAC states Plaintiff “will seek additional evidence that the accident was staged through discovery in this action.” (FAC, ¶ 9.) The FAC only points to “red flags” and indicators of potential fraud regarding the collision. (FAC, ¶ 8.)

Therefore, the Court denies Plaintiff’s motion for judgment on the pleadings.